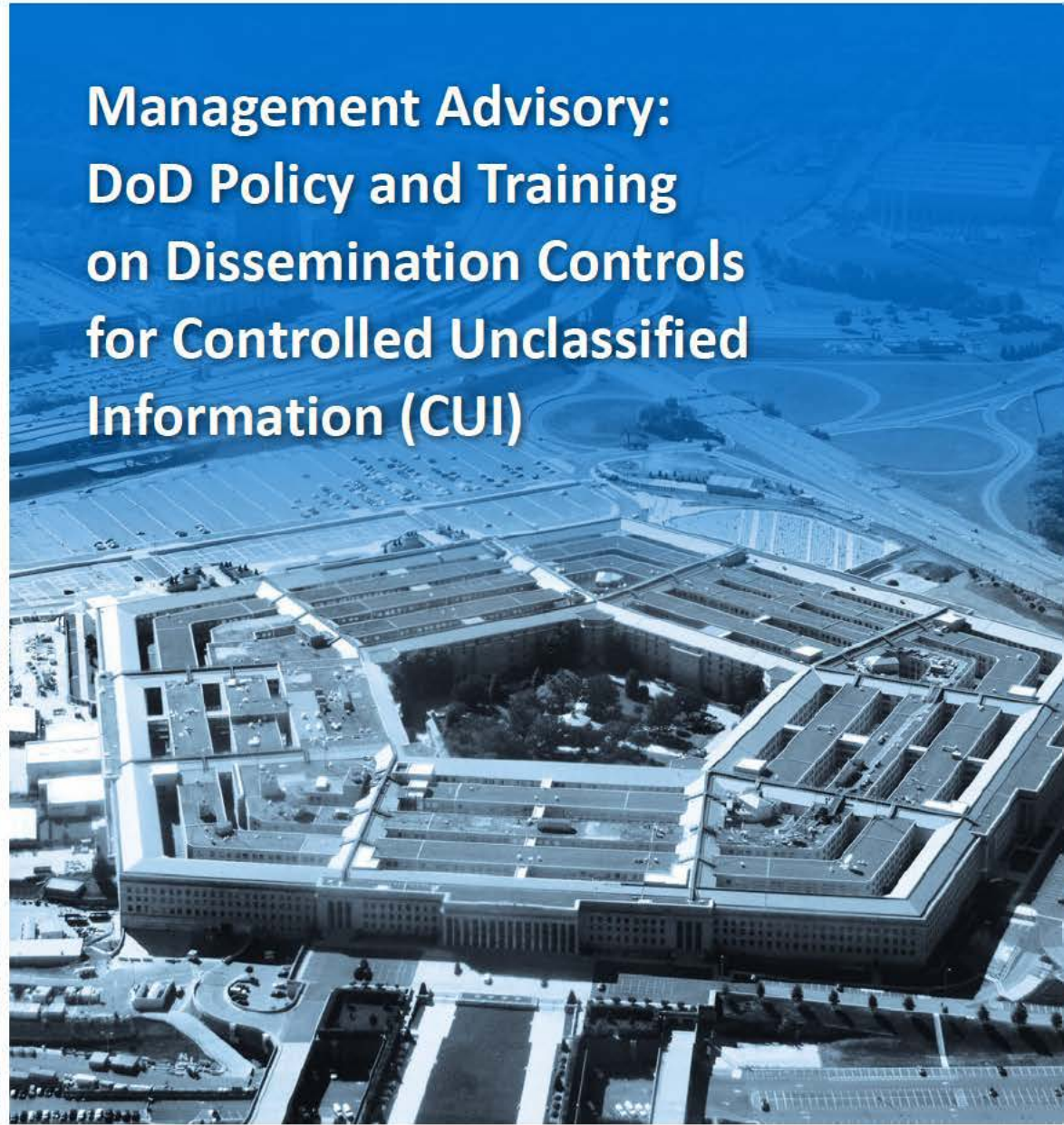




INSPECTOR GENERAL

U.S. Department of Defense

JANUARY 29, 2026



Management Advisory: DoD Policy and Training on Dissemination Controls for Controlled Unclassified Information (CUI)

INDEPENDENCE ★ INTEGRITY ★ EXCELLENCE ★ TRANSPARENCY





**OFFICE OF INSPECTOR GENERAL
DEPARTMENT OF DEFENSE
4800 MARK CENTER DRIVE
ALEXANDRIA, VIRGINIA 22350-1500**

January 29, 2026

MEMORANDUM FOR UNDER SECRETARY OF DEFENSE FOR INTELLIGENCE AND SECURITY

**SUBJECT: Management Advisory: DoD Policy and Training on Dissemination Controls for
Controlled Unclassified Information (CUI) (Report No. DODIG-2026-047)**

This management advisory identifies concerns related to DoD Components' marking of controlled unclassified information (CUI). We identified these concerns during the "Evaluation of DoD Policy and Oversight Reports Related to Using Non-DoD-Controlled Electronic Messaging Systems to Conduct Official Business."¹ We conducted this evaluation from April through August 2025 in accordance with the "Quality Standards for Inspection and Evaluation," published in December 2020 by the Council of the Inspectors General on Integrity and Efficiency. We previously provided copies of the draft management advisory and requested written comments on the recommendations. We considered management's comments on the draft management advisory when preparing this final advisory. These comments are included in the advisory.

This report contains two recommendations that are considered closed based on comments received and our review of the evidence supporting those actions. In addition, this report contains three recommendations that are resolved but will remain open. We will close those recommendations once we verify that management actions taken fully address the recommendations.

DoD Instruction (DoDI) 5200.48, "Controlled Unclassified Information (CUI)," issued by the Office of the Under Secretary of Defense for Intelligence and Security (OUSD[I&S]), establishes DoD program requirements for designating, marking, handling, and decontrolling CUI.² This instruction mandates a CUI designation indicator block on the first page of any CUI document, including those with comingled classified information. This block must include the CUI category and originating DoD Component and office. If a lawful basis exists for limiting the distribution of the CUI, the block must also contain the applicable limited dissemination control (LDC), as defined in the official DoD CUI Registry. Even though access to CUI requires a lawful government purpose, the DoD CUI Information Security Program promotes information sharing to the maximum extent possible, balanced with necessary safeguarding and handling measures.

¹ DoD Office of Inspector General Report No. DODIG2026-022, "Evaluation of DoD Policy and Oversight Reports Related to Using Non-DoD-Controlled Electronic Messaging Systems to Conduct Official Business," December 2, 2025.

² DoDI 5200.48, "Controlled Unclassified Information (CUI)," March 6, 2020.

Furthermore, DoDI 5200.48 requires all DoD personnel and contractors who handle CUI to receive initial and annual CUI refresher training. DoDI 5200.48 directs specific learning objectives in training, including marking requirements, and addresses methods for properly disseminating CUI in the DoD and with external entities. To support CUI training, the OUSD(I&S) directed the Defense Counterintelligence and Security Agency and Center for Development of Security Excellence (CDSE) to develop and provide mandatory CUI training for the DoD.³ The CDSE created the web-based, self-paced DoD Mandatory CUI Training course covering DoDI-required training elements. Additionally, the OUSD(I&S) published a CUI training aid, “Controlled Unclassified Information Markings,” in December 2024, detailing how to properly mark CUI documents.⁴ The OUSD(I&S) maintains a DoD CUI Program website that includes a link to the CDSE’s mandatory CUI training, the OUSD(I&S) CUI training aid, and other CUI training aids, marking tips, and responses to frequently asked questions.⁵

Based on our review of four oversight projects, we found that DoD organizations may unnecessarily restrict the dissemination of CUI documents.⁶ DoD organizations frequently did not correctly mark CUI documents with the required designation indicator block; when they did, the organizations may have unintentionally restricted dissemination by defaulting to the LDCs of “Federal Employees and Contractors Only (FEDCON)” or “Federal Employees Only (FED ONLY)” rather than using “None” or no LDC. The OUSD(I&S) began documenting marking errors in 2023 and posting the metrics on the DoD CUI Program website.⁷ According to the website, based on a review of over 48,000 documents from 2023 and 26,000 documents from 2024, the Components reported that 9 percent of the documents from 2023 and 11 percent of those from 2024 did not contain the CUI designation indicator block. Additionally, information was missing from the CUI designation indicator block for four percent of documents from 2023 and seven percent of those from 2024.

³ The Defense Counterintelligence and Security Agency (DCSA) is a Federal security and defense agency that ensures security training, education, and certification standards for the DoD. The DCSA Director is under the authority, direction, and control of the Under Secretary of Defense for Intelligence and Security, and the CDSE executes the functional manager responsibility on behalf of the DCSA. DoD Directive 5105.42, “Defense Counterintelligence and Security Agency,” January 16, 2025.

⁴ Defense Office of Prepublication and Security Review 25-P-0275, “Controlled Unclassified Information Markings,” December 2024.

⁵ The DoD CUI Program website is located at <https://www.dodcui.mil>.

⁶ The four reports we reviewed included the following: DODIG-2024-002, “Management Advisory: The Protection of Sensitive Mission Data by the Security Assistance Group—Ukraine and Its Subordinate Commands,” November 2, 2023; DODIG-2024-093, “Evaluation of the Accountability of Ukraine-Bound Equipment to Sea Ports of Embarkation in the Continental United States,” June 10, 2024; DODIG-2025-037, “Evaluation of the Accountability of Presidential Drawdown Authority Defense Item Deliveries to Ukraine,” November 15, 2024; and DODIG-2025-075, “Evaluation of the DoD’s Validation of Repair Parts Requested by the Ukrainian Armed Forces,” March 10, 2025.

⁷ DoD CUI Program Webpage, “Marking Discrepancies,” accessed September 19, 2025, <https://www.dodcui.mil/Training/#Marking%20Discrepancies>.

Although these statistics suggest that DoD personnel and organizations have minor deficiencies in either understanding how to properly mark or in marking CUI documents, the sample from the DoD Office of Inspector General (DoD OIG) indicates that the issue is more pervasive. For example, based on a nonstatistical sample of 300 documents, a 2023 DoD OIG audit concluded that DoD Component personnel did not consistently apply required markings to documents containing CUI.⁸ Specifically, the audit report stated that 48 percent of the reviewed documents did not include a designation indicator block. In addition, we compiled all CUI documents that stakeholders provided during four previous DoD evaluations to assess which CUI documents were missing the required designation indicator block and, for those that did include one, which LDC was used. Based on a total of over 100 current, sensitive but unclassified documents, we found 40 different types of documents from the same originator supporting the same operation.⁹ Of these 40 different types of documents, 28 types (70 percent) had no designation indicator block or were marked with the legacy “For Official Use Only.” Of the 12 types with a designation indicator block, every document included an LDC restriction, and the predominant choice (8 of 12) was FEDCON or FED ONLY.

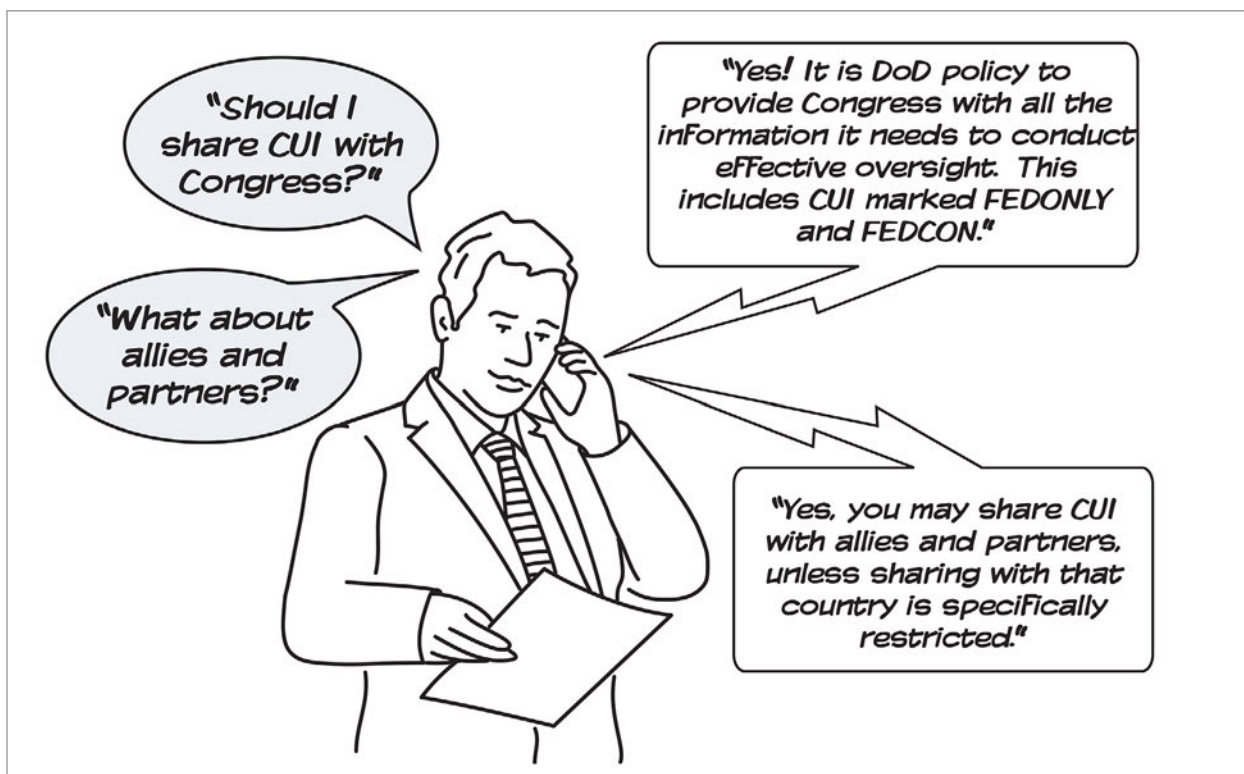
We found that the use of restrictive LDCs may have occurred, in part, because the OUSD(I&S) and its supporting organizations provided conflicting and insufficient guidance and training regarding the selection of an appropriate LDC. For example, the DoD CUI Program website provides conflicting guidance on the use of FEDCON and FED ONLY markings. Although a frequently asked questions training aid, “CUI: Protecting It and Sharing It,” on this website suggests that these markings allow sharing with Congress (see the figure), the CUI LDC webpage states that these markings restrict dissemination to employees in the U.S. Government’s Executive Branch agencies, Armed Forces personnel, and, for FEDCON, to certain contractors.¹⁰ The specific description of these LDCs excludes release outside the Executive Branch and, therefore, to Congress.

⁸ DoD OIG Report No. DODIG-2023-078, “Audit of the DoD’s Implementation and Oversight of the Controlled Unclassified Information Program,” June 1, 2023. The audit made eight recommendations to the Under Secretary of Defense for Intelligence and Security; seven of the recommendations remain open.

⁹ To more accurately assess how individual organizations or personnel marked CUI, we grouped documents that were recurring issuances from the same organization, for the same purposes, and contained the same CUI markings as one type of document. For example, we grouped together as one type of document dozens of the Defense Security Cooperation Agency’s execution orders to furnish military assistance to Ukraine in successive presidential drawdowns.

¹⁰ DoD CUI Program Webpage, “Information Sharing,” accessed August 11, 2025, <https://www.dodcui.mil/Frequently-Asked-Questions/Information-Sharing/>. DoD CUI Program Webpage, “Limited Dissemination Control (LDC),” accessed September 19, 2025, <https://www.dodcui.mil/Training/Limited-Dissemination-Controls>.

Figure. Frequently Asked Questions Training Aid on Protecting and Sharing CUI



Source: DoD CUI Program website, DOPSR 23-S-1684.

In addition, the CDSE's DoD Mandatory CUI Training course presents a table of LDC options and encourages dissemination to the extent that access complies with law, regulation, or government-wide policy. However, the course does not discuss the implications for selecting FEDCON or FED ONLY and sharing CUI information outside the Federal Executive Branch.

The OUSD(I&S) also provided conflicting and insufficient CUI training and guidance regarding the appropriateness of using no LDC. The DoD Mandatory CUI Training course lists "None" as the first LDC option but does not provide guidance on when choosing "None" would be appropriate or what the absence of an LDC means, nor does it encourage the use of no LDC as the default marking. In addition, the course may confuse personnel by including an "N/A" LDC in an example. The course also refers students to a resource link with the OUSD(I&S)'s "Controlled Unclassified Information Markings" training aid, but this aid omits the "None" LDC despite its inclusion in the training course slides.¹¹

Based on our review, the OUSD(I&S) CUI training aid, DoD CUI Program website training aids, DoD Mandatory CUI Training course, and DoDI 5200.48 are unclear about whether the LDC line in the designation indicator may be left blank. For example, the OUSD(I&S) CUI marking training aid clarifies that the absence of an LDC indicates that access is permitted to anyone with a lawful government purpose (but does not authorize public release), and a separate LDC

¹¹ An LDC table on the DoD CUI Program LDC webpage also omits the LDC of "None."

marking tip on the DoD CUI Program website suggests that LDCs are applied only when access is restricted beyond a lawful government purpose.¹² However, the DoD CUI Program website tracks missing LDCs as a marking discrepancy. These inconsistencies in training materials could lead to confusion among DoD personnel about whether they should choose “None,” “N/A,” or leave the LDC line blank when no access restrictions beyond a lawful government purpose are required.

Conflicting and insufficient guidance and training on the implications of LDC choice and a lack of emphasis on using LDCs by exception may cause DoD Components to unintentionally restrict documents with FEDCON or FED ONLY as their default marking. These LDCs restrict the ability of the originating Component, or Components that use the information, to share the information with Congress and other government agencies with a need to know to conduct official business.

Recommendations, Management Comments, and Our Response

Recommendation 1

We recommend that the Under Secretary of Defense for Intelligence and Security:

- a. Remove or correct the frequently asked questions training aid, “CUI: Protecting It and Sharing It,” on the DoD CUI Program webpage.**
- b. Update the following guidance and training to clarify the implications of using the limited dissemination controls of “Federal Employees and Contractors Only (FEDCON)” and “Federal Employees Only (FED ONLY)” for releasability outside the Executive Branch and emphasize the use of limited dissemination controls by exception, with a limited dissemination control of “None” as the default option unless required otherwise.**
 - 1. DoD Instruction 5200.48, “Controlled Unclassified Information (CUI)”**
 - 2. Defense Office of Prepublication and Security Review 25-P-0275**
 - 3. Center for Development of Security Excellence’s DoD Mandatory CUI Training course**
 - 4. Other applicable Under Secretary of Defense for Intelligence and Security training aids on the DoD CUI Program website, such as the link to the “CUI Limited Dissemination Control” table and “Limited Dissemination Controls Marking Tips”**

¹² DoD CUI Program Webpage, “Limited Dissemination Control (LDC),” accessed September 19, 2025, <https://www.dodcui.mil/Training/Limited-Dissemination-Controls>.

Management Comments

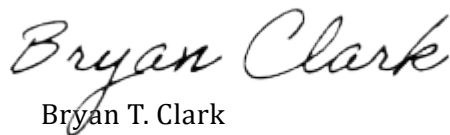
The Director for Defense Intelligence, Counterintelligence, Law Enforcement, and Security, responding on behalf of the Under Secretary of Defense for Intelligence and Security, agreed with the recommendations. The Director stated that they completed Recommendation 1.a by updating the DoD CUI website. The Director agreed with Recommendation 1.b.1 and stated that they plan to update the CUI DoDI with clarification on the implication of using LDCs and having an LDC by exception, not default. The Director agreed with Recommendation 1.b.2 and stated that they will coordinate with the Defense Office of Prepublication and Security Review to update the training aid. The Director also agreed with Recommendation 1.b.3 and stated that they will work with the CDSE to update the DoD CUI training course and other materials. Additionally, the Director agreed with Recommendation 1.b.4. and stated that they updated the applicable training aids available on their website.

Our Response

Comments from the Director addressed the specifics of the recommendations. Based on our review of the materials available on the DoD CUI website, Recommendations 1.a and 1.b.4 are closed. In addition, based on the Director's comments, Recommendations 1.b.1, 1.b.2, and 1.b.3 are resolved but will remain open. We will close those recommendations when we verify that management took actions to fully address the recommendations.

If you have any questions, please contact [REDACTED]

We appreciate the cooperation and assistance received during the evaluation.



Bryan T. Clark

Assistant Inspector General for Evaluations

Programs, Combatant Commands, and Operations

Management Comments

Under Secretary of Defense for Intelligence and Security



OFFICE OF THE UNDER SECRETARY OF WAR 5000 DEFENSE PENTAGON WASHINGTON, DC 20301-5000

MEMORANDUM FOR ASSISTANT INSPECTOR GENERAL FOR EVALUATIONS,
PROGRAMS, COMBATANT COMMANDS, AND OPERATIONS

SUBJECT: Management Comments on Inspector General Project No. D2025-DEV0PC-0094.001

On behalf of the Under Secretary of War for Intelligence and Security, I appreciate your team's evaluation of DoW policy and training on dissemination controls for Controlled Unclassified Information (CUI). I concur with your assessment that inconsistent guidance and training materials lead DoW personnel to unnecessarily restrict CUI documents through excessive and unnecessary use of limited dissemination controls (LDC).

I also appreciate your recognition that we have begun to document marking errors and to post metrics on the DoD CUI Program website in order to improve oversight and awareness of these issues.

Response to Recommendations:

Recommendation 1.a: ACCEPTED and COMPLETE. We updated the DoD CUI Program webpage by removing the "CUI: Protecting It and Sharing It" training aid on November 25, 2025 after our discussion with your office.

Recommendation 1.b.1: ACCEPTED. We will incorporate the recommended clarifications regarding LDC implications and emphasis on using LDCs by exception when we next update DoD Instruction 5200.48 or create a corresponding DoD Manual. Specifically, we will clarify the implications of using the limited dissemination controls of "Federal Employees and Contractors Only (FEDCON)" and "Federal Employees Only (FED ONLY)" for releasability outside the Executive Branch, especially with regards to the effects on releasability to congress, and will emphasize the use of limited dissemination controls by exception, with a limited dissemination control of "None" as the default option unless required otherwise in our policies and trainings.

Recommendation 1.b.2: ACCEPTED. We will coordinate with the Defense Office of Prepublication and Security Review to update the referenced training aid (25-P-0275).

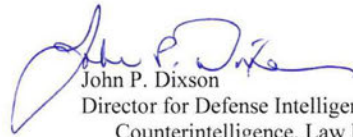
Recommendation 1.b.3: ACCEPTED. We will work with the Center for Development of Security Excellence to update the DoD Mandatory CUI Training course and associated materials in the CDSE CUI toolkit.

Recommendation 1.b.4: ACCEPTED and COMPLETE. We updated the applicable training aids on the DoD CUI Program website, including the "CUI Limited Dissemination Control" table and "Limited Dissemination Controls Marking Tips."

Under Secretary of Defense for Intelligence and Security

We have updated DoDI 5200.48 to clarify training requirements and the use of LDCs for foreign dissemination and it is currently in legal sufficiency review. We anticipate the instruction will be published in January 2026.

My point of contact for this effort is [REDACTED]



John P. Dixon
Director for Defense Intelligence
Counterintelligence, Law Enforcement,
& Security

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U.S. DEPARTMENT OF DEFENSE

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